

HOUSE No. 449

The Commonwealth of Massachusetts

PRESENTED BY:

Tram T. Nguyen

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act eliminating forced broker's fees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tram T. Nguyen</i>	<i>18th Essex</i>	<i>1/7/2025</i>
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>1/8/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/9/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>1/16/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>1/14/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>3/21/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>3/16/2025</i>

HOUSE No. 449

By Representative Nguyen of Andover, a petition (accompanied by bill, House, No. 449) of Tram T. Nguyen and others for legislation to further regulate broker's fees. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act eliminating forced broker's fees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 87DDD1/2 of chapter 112 of the General Laws shall be amended by adding the
2 following paragraphs: -

3 (b) No licensed real estate broker or other person or entity engaged in the rental or leasing
4 of residential real estate in the commonwealth as agent of the landowner, landlord, lessor, or sub-
5 lessor shall demand, receive, or retain any payment, fee, commission or other charge from a
6 tenant or prospective tenant for any services on behalf of such landowner, landlord, lessor, or
7 sub-lessor for the listing, showing, qualifying of prospective tenants, preparation and execution
8 of documents, or otherwise arising out of the leasing of a residential rental.

9 (c) No landowner, landlord, lessor, or sub-lessor shall demand or require that a tenant or
10 prospective tenant retain, hire or engage a rental agent or broker and pay such agent or broker a
11 fee or commission as a condition to applying for or leasing a residential rental unit in the

12 commonwealth, and no such landowner, lessor, or sub-lessor shall demand or require that a
13 tenant or prospective tenant make any payment in violation of subsection (b) of this act.

14 (d) Violation of this act shall constitute an unfair or deceptive act or practice in the
15 conduct of a trade or commerce in violation of section 2 of chapter 93A.

16 (e) There shall be a fine established, for violation of this act, not to exceed \$1,000.00 per
17 violation. This act shall take effect upon passage.